SALE CONTRACT

BETWEEN

[redacted]

And

AGRIA S.A.

No.: 20240401-1
Date: 01.04.2024

SALE CONTRACT dated as of the 01st day of April, 2024 by

[redacted] a Vietnamese corporation duly registered with the Commercial Register at the Department of Planning and Investment in HoChiMinh city (HoChiMinh D.P.I), under Number 0311035608, with seat and registered office at 14A Street 23, Quarter 4, Hiep Binh Chanh ward, Thu Duc city, HoChiMinh city, Vietnam, with contact telephone nuber is (+84)-913706742, represented by Mr. Phan Thanh Tam, acting as Director (The Buyer).

And
AGRIA S.A., duly registered with the Commercial Register at the Registry Agency under EIK (Unified Company Number) 115006106, VAT registration No. BG 115006106, with seat and principal place of business at: Asenovgradsko Shose Str., 4009 Plovdiv, represented by Lazar Ivanov Kochiev, acting as Executive Director (The Seller).

WHEREAS, the Seller is a company that produces and commercialises Mancozeb 80% WP (" the Product"). The Seller intends to provide and export this Product to the Buyer, according to the terms of this Contract.

DEFINED TERMS
These terms are defined, for purposes of their use in this Contract, as follows:

1. "Contract" means all the terms and conditions contained herein.
2. "The Seller" means AGRIA S.A. as identified above.
3. "The Buyer " means [redacted] as identified above.
4. "Effective Date" means the date first above written.
5. "Information" means the confidential information, technology and know-how of one party relating to the production, storage, use, and application (including, but not limited to, safety, health, toxicological and environmental matters) of a Product, or relating to the marketing and sale of the Product. Information may be "Seller Information" or "Buyer Information" and may be oral or written.
6. "Product" means Mancozeb 80%WP which Seller agrees to sell to the Buyer pursuant to the provisions of this Contract. As of the Effective Date, If the parties agree that any additional products will be covered by this Contract, an appropriately modified Appendix shall be attached to this Contract by amendment as provided above.

TERMS AND CONDITIONS OF CONTRACT:

On 01st of April 2024, the Seller has agreed to sell Mancozeb 80%WP (Trade name: CADILAC 80WP) to the Buyer in Vietnamese market and the Buyer has agreed to buy from the Seller for the Vietnamese market on basis of the following terms and conditions:

1. Product : Trade name : CADILAC 80WP (Mancozeb 80% w/w)

2. Quality : As per registered product in Vietnam with yellow color.

3. Origin: Bulgaria.

4. Packing and Quantity:

CADILAC 80WP (MANCOZEB 80% w/w)		
1.	25 kg multiply paper bags	1 FCL x 24,000 kgs
	Total quantity:	24,000 kgs

5. Unit Price:

CADILAC 80WP (MANCOZEB 80% w/w)			
1.	24,000 kgs	USD 3.00/kg CIF HoChiMinh city port, Vietnam	USD 72,000.00.-
	TOTAL		USD 72,000.00.-

Total Contract Value: USD 72,000.00.-
(Say in words: Seventy Two Thousand U.S. Dollars only)

6. Payment: By T/T at 150days after B/L date for 100% of Invoice value.

7.Obligations of the parties:
The Seller undertakes to :
- Supply the agreed quantities in time and in good conditions in full compliance with the registered product in Vietnam.
- Keep Buyer informed of all changes in packaging, appearance and other features relevant to the Product

The Buyer undertakes to :
- Pay the price of the Product, according to the present Contract;
- Keep Seller informed of all changes that are happening on the market that can affect the agreed sales

8. Shipments:
Deliveries will be effected in 1(one) 40'' FCL's, arrival HoChiMinh city, Cat Lai port, Vietnam as under:
+ 1 FCL/ 24,000 kgs net cargo: Prompt shipment to HoChiMinh city, Cat Lai port, Vietnam (ETD in November 2023).

9. Port of Shipment: Any port in Bulgaria or Greece.

10. Port of Destination: Cat Lai port, HoChiMinh city, Vietnam

11. Consignee: [redacted]
Add.: 14A Street 23, Quarter 4, Hiep Binh Chanh ward,
Thu Duc city, HoChiMinh city, Vietnam.
Tel: (+84) - 913706742 ; Email: daitamrocketvip@gmail.com

12. Shipping Marks:
Mancozeb 80% WP, Fungicide
Trade name: CADILAC 80WP
N.W.: 25 KGS
G.W.: 25.4 KGS
Batch No.:
Manufacturing date: dd/mm/yyyy
Expiry date: dd/mm/yyyy
Made in Bulgaria

13. Buyer's Bank:

Joint Stock Commercial Bank for Foreign Trade of Vietnam, Bac Lieu Branch.
Add.: 14-15 Lot B, Ba Trieu Street, Ward 3, Bac Lieu City, Bac Lieu Province, Vietnam.
Tel: +84-2913953142 ; Tel: +84-2913955055
SWIFT Code: BFTVVNVX089
Account No.: 5678777999

14. Seller's Bank:

Unicredit Bulbank AD
4, Ivan Vazov Str.
Plovdiv, Bulgaria
Swift: UNCRBGSF
Fax No: 003592/9884636
IBAN in USD: BG78 UNCR 7630 110 024 15 12

15. Documents:

The following documents shall be provided by Seller to Buyer:

1) Full set Original Clean on Board Bills of Lading marked "Freight Prepaid" made out to order of the bank, and notify the Buyer.
2) Certificate of Origin in 1 original and 2 copies and the original to be attested by the Chamber of Commerce.
3) Commercial Invoice in 3 originals.
4) Packing List in 3 originals.
5) Certificate of Insurance for 110 % of Invoice value covering All Risks from warehouse to warehouse.
6) Certificate of Analysis in 3 originals issued by the manufacturer.

16. Risk and Title:

The risk of loss or damage to the goods from port of shipment to port of destination is of the Seller, according to Incoterms 2010.

17. Claims

In case of any quantity and quality claims, period for presentation of the claims is as follows :
Claims on quantity: 10 (ten) days after arrival of the vessel in the port of destination
Claims on quality : 14 (Fourteen) days after arrival of the vessel in the port of destination
Any claim should be proved only by survey report of SGS or other well-known international survey organisation acting with good practice.
Claim will be proved only if the survey report evidences that the container was unsealed in the presence of the surveyor and the samples are obtained from the quantity in this container. The surveyor has to inspect the goods not later than 10 days after arrival of the vessel in the port of destination.
Expenses on the survey are on Buyer's account .In case of proven quantity and quality claims SELLER has to cover the according expenses.

18. Arbitration and Applicable Law:

All disputes arising from this Sale Contract, the parties will endeavour to solve in a friendly way. If it is not possible, three arbitrators will settle the disputes under the Rules of International Chamber of Commerce in Geneva appointed in compliance with the aforesaid Rules. The venue will be Switzerland and the language used in the arbitrary procedure will be English.

19. Force Majeure:

19.1. Should performance of all or any Contract obligations by either of the parties to it become impossible due to events such as fire, war, military operations of any kind, blockade, ban on export or import (hereinunder called force majeure) then the term for performance of the contract obligations shall be extended proportionally to the period during which such events continue.
19.2. Should such events continue longer than 3 (three) months either of the parties has the right to refuse further performance of the Contract obligations and in such case neither of the parties has the right to claim damages from the other party.
19.3. The party unable to perform its Contract obligations shall be obliged to immediately notify the other party of the beginning and end of the event, preventing it from performing its obligations under the Contract.

19.4. Documents issued by the Chamber of Commerce in the Seller's or the Buyer's country shall serve as due evidence of the existence and duration of the above mentioned events.

20. Incoterms:
Incoterms 2010 shall be applied for interpretation of this Contract.
Any and all additions and/ or amendments to this Sale Contract shall be considered valid and binding only if made in writing and signed by duly authorized for the purpose persons.

21. Entirety:
This Contract contains the entire agreement between Seller and Buyer in relation to the sale and purchase of the product and supersedes all prior negotiations, understandings and agreements, whether written or oral.

22. Validity:
This Sale Contract shall be in force from the date of its signing and ending on 19th October 2024.

23. Termination:
Each party may terminate this Contract in case of :
- violation of contractual obligation constituting a substantial breach;
- mutual consent expressed in writing by both parties;
- exceptional circumstances - bankruptcy or organizational change of either party resulting in inability to perform under this contract.

Signature by the Seller and the Buyer shall be exchanged by facsimile or E-mail, and shall serve as the originals.

The Sale Contract is written in two identical copies in English language, one of each for each party.

For & on behalf of the Seller:

GRADSKO SHOSE
PLOVDIV
ARIA

For & on behalf of the Buyer: